



US Department
of Transportation

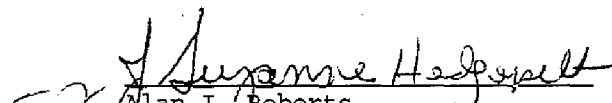
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8864 (EXTENSION)
SECOND REVISION May 31, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8864 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to April 30, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 30 1995

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Miller Transporters, Inc.
Jackson, MS

May 18, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
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**Research and
Special Programs
Administration**

DOT-E 8864
(SECOND REVISION)

400 Seventh Street, S.W.
Washington, D.C. 20590

MAY 31 1988

1. Miller Transporters, Incorporated, Jackson, Mississippi, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to transport packages prescribed herein of a corrosive liquid in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of non-DOT specification cargo tanks for transportation of a corrosive liquid, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Arrow Transportation Co., Portland, OR - PTE-1.
Redwing Carriers, Inc., Tampa, Florida - PTE-2.

2. BASIS. This exemption is based on Miller Transporters Inc.'s application dated February 17, 1987, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Arrow Transportation Co.'s application dated January 12, 1988.
Redwing Carriers, Inc.'s application dated August 9, 1983.

3. HAZARDOUS MATERIALS (Descriptor and class). Green pulp mill liquor containing caustic soda, sodium carbonate, sodium sulfide, sodium chloride, and at least 80% water, classed as corrosive material. The liquor is corrosive to skin, but not to carbon steel.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive liquid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.245(a), 178.340-8, 178.340-10, 178.341-3, 178.341-4, 178.341-5 and 178.341-7.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is:

a. Non-DOT specification cargo tank described in Miller Transporter, Inc.'s application dated May 7 and June 14, 1982, which complies with DOT Specification MC 306 except for the requirements of §178.340-8(a)(3) and (c)(appurtenance mounting pads and overturn protection); §178.340-10 (tank certification); §178.341-3 (closure for manholes); §178.341-4(vents); §178.341-5 (emergency flow control) and §178.341-7(tests). No new construction of tanks is authorized.

b. DOT Specification MC-303, MC-305 and MC-306 cargo tanks constructed of 12 gauge 304 grade stainless steel as specified in Arrow Transportation Company's application dated January 12, 1988.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Each cargo tank must be hydrostatically tested once every 5 years in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC 306 cargo tanks.

c. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high in a contrasting background, "DOT-E 8864".

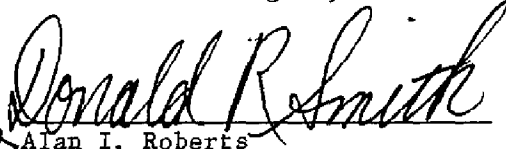
d. Tanks operating under this exemption must bear one of the following serial numbers: K 2062 thru and including K 2075, K 2334 thru and including K 2367, except K 2336 and K 2363 or as shown in the Arrow Transportation Company application of January 12, 1988, on file with the Office of Hazardous Materials Transportation (OHMT).

e. Each cargo tank must meet the rear bumper requirements of 49 CFR 178.340-8.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. February 28, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAY 31 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA